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General Comment

The outputs of generative AI programs should not be copyrightable by humans because the humans writing the prompts do not have meaningful direct control over the outputs. The scraping of the entire body of intellectual property available on the internet for the purpose of training AI programs should not be considered "fair use."

The works of so-called "art" produced by prompting so-called "artificial intelligence" are, at their core, recombinative. Generative AI programs, by my understanding, are not capable of adding anything of their own to the works they produce. Instead, their outputs merely combine elements of other works already in existence, either produced by humans (or, now, by other generative AI programs). They may do this combining of elements in a fairly complex way, based on the prompts given to them by humans, but the fundamental truth is that AI "art" is just Frankensteined-together bits and pieces of intellectual property. None of this work would exist without the cannibalization of human work.

Now, sure, some art made by human beings is fundamentally recombinative as well. But some human art transcends its influences. Human beings produce creative work in a nonlinear and sometimes ineffable way that generative AI is not capable of duplicating, and indeed does not need to duplicate. We do not need a machine that does what we already do well enough on our own, at an unnecessary environmental cost.

AI does not need to exist. Generative AI has no killer app and no practical use other than the production of digital garbage. There is no way for this technology to be substantially improved. There is no need for the US to be a dominant player in the AI market. Let China dominate this pointless industry, and let the lumbering, over-funded U.S. companies that have hyped this vacuous technology beyond all rationality collapse in upon themselves.